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#	Case Name	Tentative
1.	<i>In Re: Herrera</i> <i>2025-01531449</i>	OFF CALENDAR based on request for dismissal filed and entered on May 27, 2026.
2.	<i>In Re: Aguilar Nava</i> <i>2026-01554839</i>	Before the court is the petition of petitioner J.G. Wentworth Originations, LLC (Petitioner) for court approval of proposed transfer of certain periodic payments real party in interest and payee Luis Aguilar Nava (Payee) is scheduled to receive under a structured settlement. As more fully set forth below, the hearing on the petition is CONTINUED TO JULY 23, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for Petitioner to provide additional information necessary to enable the court to determine whether the required findings can be made. In these proceedings, Petitioner seeks court approval for Payee to transfer 84 monthly payments of \$624.24, increasing at 2 percent annually, beginning on September 15, 2026, and ending August 15, 2033, and 40 monthly payments of \$2,356.14, increasing 2% annually, beginning September 15, 2033, and ending December 15, 2036. These payments total \$152,219.52 and have a discounted present value of \$108,564.30. In exchange for transferring the right to receive these monthly payments, Payee would receive a present, lump sum payment of \$50,000, which represents 46.05 percent of the

payments' present value and equates to an equivalent interest rate of 19.23 percent if Payee were to take a loan.

Insurance Code section 10139.5, subdivision (b) requires the court to consider a variety of circumstances, including Payee's financial and economic situation, to determine whether the transfer is fair and reasonable, and in the best interest of the Payee. Petitioner and Payee, however, have failed to provide sufficient information for the court to make such a determination. Although Payee states he does not have any minor children, Payee states he had been financially supporting his 4 siblings, 3 of whom are now over 18 years old and caring for themselves. Is he still financially supporting the 4th sibling and/or does he have any other dependents?

Furthermore, although Payee states he is currently experiencing financial hardship, the record shows Payee's monthly income and annuity payment exceeding his living expenses by over \$1,000. Payee also does not adequately explain how the funds from the proposed transaction will be used. Payee states the funds from the proposed transaction will be used to pay \$20,000 in credit card debt, and the remaining \$30,000 will be used to pay for community college and expenses, but \$30,000 seems well above the amount needed to pay for such expenses. Payee does not state whether he has any other assets or why he cannot use his excess income to pay off the credit card debt.

The court needs more information about Payee's financial circumstances and a greater explanation about how this proposed transaction is fair, reasonable, and in Payee's best interest before this transaction can be approved, if at all. Indeed, the court is concerned the terms of the proposed transaction is not in Payee's best interest, especially when compared to the terms of the previous transactions the court approved.

Accordingly, Petitioner and Payee are ordered to file an additional declaration(s) and any other documents needed to provide the court with the foregoing information about Payee's financial condition and to demonstrate the transaction is fair and reasonable and in Payee's best interest. All filings are ordered to be filed and served at least 20 days before the continued hearing date.

Based on the foregoing, the petition is **CONTINUED** as set forth above.

Petitioner's counsel is ordered to give notice.

3.	<i>In Re: 4968 Avila Way, Buena Park, CA 90621</i> 2025-01489807	Before the court is the motion of claim for disbursement of surplus funds by claimant Nina Ilkhanoff (Claimant). As set forth below, the hearing is continued to THURSDAY, AUGUST 6, 2026, AT 2:00 P.M., IN DEPARTMENT C23. On June 11, 2025, petitioner Quality Loan Service Corp. (Petitioner) filed a petition and declaration regarding unresolved claims and deposit of undistributed surplus proceeds of trustee's sale held on January 6, 2025, regarding real property located at 4968 Avila Way, Buena Park, California 92601 (Property). The Property had sold for \$569,100, and after paying the amounts set forth in Section 16 of the petition, a surplus balance of \$27,144 remained. On September 25, 2025, the court granted Petitioner's request to deposit the surplus funds with the court for the court to adjudicate the owner of those funds. (ROA 16.) Petitioner subsequently deposited the \$27,144 in surplus funds and was discharged from responsibility for distribution of the surplus funds. (ROA 21, 27.) No claim to the surplus funds, however, was asserted prior to or at the hearing on unresolved claims held on December 11, 2025, and the funds continue to remain on deposit with the court. (ROA 32.) Claimant now has filed this motion of claim for disbursement of surplus funds. (ROA 49.) The proof of service submitted with the motion, however, is deficient in multiple ways. First, the proof of service filed on March 16, 2026, states a "case management statement" was served. (ROA 39.) It does not identify the notice of motion, memorandum of points and authorities, or the supporting declaration as being served. Second, the proof of service states the "case management statement" was served solely on counsel for Homestead Equities, LLC. All documents also should be served on Homestead Equities, LLC at the address listed in attachment 8 to the petition. The motion itself also is deficient in that the declaration of Nina Ilkhanoff submitted as the factual basis for the motion is not signed by Nina Ilkhanoff. Instead, the declaration is signed by Cynthia Ilkhanoff. The signature block states Cynthia Ilkhanoff has a power of attorney for Nina Ilkhanoff. Notably, that portion of the declaration is not under penalty of perjury and no copy of the alleged power of attorney was submitted with the declaration showing the scope of the power of attorney. Furthermore, Code of Civil Procedure
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